

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1149

Introduced by Hunt, 8.

Read first time January 20, 2026

Committee:

- 1 A BILL FOR AN ACT relating to state government; to amend section 73-302,
- 2 Reissue Revised Statutes of Nebraska; to require disclosure of state
- 3 agency contracts with private entities that have contracts with
- 4 United States Immigration and Customs Enforcement; and to repeal the
- 5 original section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 73-302, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 73-302 (1) A state agency that seeks to enter into a contract
4 described in section 73-301 with a private entity shall submit the
5 following information to the Director of Administrative Services: (a) The
6 proposed contract, (b) a review of the long-term actual cost savings, (c)
7 the measurable goals for improving the quality of the service, ~~and~~ (d) an
8 assessment of the feasibility of alternatives within the agency to
9 contracting for performance of the service, and (e) any contracts entered
10 into by such private entity with United States Immigration and Customs
11 Enforcement.

12 (2) In calculating the cost savings under subsection (1) of this
13 section, the state agency shall project, for twelve months and for sixty
14 months, the following:

15 (a) Direct costs, including salary and fringe benefits;

16 (b) Indirect overhead costs which shall include only those costs
17 that can be attributed solely to the work in question and that would not
18 exist if the work were not performed by state employees. Indirect
19 overhead costs shall include the pro rata share of existing
20 administrative salaries and benefits, rents, equipment costs, utilities,
21 and materials;

22 (c) Any continuing or transitional costs that are directly
23 associated with contracting for the work, including unemployment
24 compensation and the cost of transitional services; and

25 (d) Additional costs of performance of the work by state employees,
26 including the salaries and benefits of additional staff performing
27 inspection, supervision, and monitoring duties and the cost of additional
28 space, equipment, and materials needed to perform the services.

29 **Sec. 2.** Original section 73-302, Reissue Revised Statutes of
30 Nebraska, is repealed.